NO. CV-24-101

BEFORE THE ARKANSAS COURT OF APPEALS

CLYDE HATCHETT, SR. and VIOLENTEE HATCHETT

APPELLANTS

v.

HATCHETT-BULLOCK CEMETERY ASSOCIATION, INC.

APPELLEE

On Appeal From The Pulaski County Circuit Court
Honorable Morgan E. Welch, Jr., Presiding Judge

REPLY BRIEF

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ARGUMENT

I. The trial court erred by granting injunctive relief to a corporation concerning property that is owned by an individual or an unincorporated nonprofit association.

a. A claim of irreparable harm requires an interest in real property.

On the one hand, appellee Hatchett-Bullock Cemetery Association, Inc., defends the trial court's permanent injunction by declaring that "the right to administer the cemetery, not ownership, formed the basis for the circuit court's order." Brief of Appellee at 24. In the next figurative breath, appellee asserts that irreparable harm was shown, in part, because "trespasses are not susceptible of pecuniary compensation." Brief of Appellee at 40-41. Since an interest in real property is essential to a showing of irreparable harm by way of potential future trespass, appellee should not be heard to say that just "the right to administer the cemetery" is at issue in this appeal.

b. As family members, appellants have the right to challenge the order denying them entry to the family cemetery.

Nor did appellants "miss[ ] the mark," as appellee claims, by arguing that the issue is about "mere 'access to the cemetery.'" Appellants did not challenge the portion of the order barring them from burying non-family members or marketing burial plots—because they denied doing such things. So mere access to the cemetery is exactly the issue in the challenged portion of the order, which was

drafted by appellee's counsel before entry by the circuit court. That provision states that "[appellants] are hereby restrained from entering the Hatchett Bullock Cemetery for any reason without permission from the [appellee]." (RP 31) (emphasis supplied).

Thus, the issue raised in this appeal is access to the family cemetery, and appellants argue that the trial court erred in barring two family members from such access at the behest of a plaintiff who failed to offer evidence of any cognizable interest in the real property. This has been appellants' argument all along. See Brief of Appellants at 16-17 ("Without a legally cognizable right to the property, the Association suffered no harm—much less any irreparable harm—by the continued access to the cemetery by [Clyde Hatchett]").

c. Arkansas courts have never held that an argument is waived if a case cited on appeal was not cited to the trial court.

And, of course, appellee's argument that the issue on appeal was not preserved is simply incorrect. While trial counsel for appellants did not specifically argue the case cited by appellants on appeal (for the principle that incorporation by some members of an unincorporated association does not automatically transfer its

title to real property to the new entity),[1] he repeatedly objected to injunctive relief on the ground that the Association did not own the property at issue just because it had incorporated.

One such argument is reflected in the following exchange:

> THE COURT: Well, the alienation of title to property. Property is unique, isn't it?
> MR. HARRIS: It is, Your Honor, but we do not believe they have even shown that they have any title to this property. The Association, Inc., has no deed showing that they own anything to it. They do not show that they have any right to any of this property. They do not show that the Association, Inc., has any right to be at the cemetery, much less be a part of it.
> This something that apparently one or two or maybe three people, two of whom live out of state, created down at the Secretary of State. They made themselves a legal entity, yes. That does not give them the right to own something, like it does not give them the right to own my house or your house. They claim they own the property.

(RT 133). (emphasis supplied).

This argument below plainly was enough to apprise the trial court of the nature of appellant's objection to the requested relief. Arkansas appellate courts have never held that a particular case, cited on appeal, also must have been cited to the trial court below. To the contrary, in *State v. Jones*, 338 Ark. 781, 788-789, 3 S.W.3d 675 (1999), the Arkansas Supreme Court held that the state's citation on

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[1] *Town of Gravette v. Veach*, 186 Ark 544, 54 S.W.2d 704 (1932), overruled in part on other grounds, *Lael v. Crook*, 192 Ark. 1115, 97 S.W.2d 436 (1936).

appeal to a particular regulation that had not been cited to the trial court "simply strengthens [the argument made below] by its citation to specific authority." In *Jones*, the argument made below was preserved where there was no change in its nature or scope on appeal, but additional authority was cited. Something similar occurred here. Judge Welch understood that the Hatchetts' counsel believed that the problem with the Association's claim was that it had no ownership interest in the property just because it had incorporated. That continues to be the basis for reversal on appeal.[2]

d. To establish irreparable harm with respect to real property, a plaintiff must have a cognizable interest in that real property.

And the problem with a finding of irreparable injury in the absence of proof of a property interest is not diminished by reference to *Anita G, LLC v. Centennial Bank*, 2019 Ark. App, 217, 575 S.W.3d 561 (2019), as appellee suggests. In that case the appellate court upheld the issuance of an injunction to protect a prescriptive easement. Unlike the bare quasi-contractual right to manage property

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[2] Appellants note that the mere reference to the status of Clyde Hatchett, Sr., as one of the grandsons of "Doc" Hatchett does not waive rights on appeal as to Violentee Hatchett. The issue identified in the "Points on Appeal" section of the opening brief applies to both appellants.

of another at issue here, an easement is an interest in real property recognized by Arkansas law. See, e.g., *Parkerson v. Brown*, 2010 Ark. App. 505 at *5, 379 S.W.3d 485, 488 (2010) ("[A]n easement is an interest in land"); *Hanna v. Robertson*, 86 Ark. App. 180, 185, 167 S.W.3d 166, 170 (2004) ("An easement is a nonpossessory interest in the land of another."). Here, the Hatchett-Bullock Cemetery Association, Inc. did not have an easement (or any documented right of ownership of the cemetery), therefore, appellee's reliance on *Anita G, LLC* is misplaced.

e. This Court should reject appellee's invitation to appellate fact-finding as to offensive application of unpled affirmative defenses.

Appellants will accept appellee's assertion that the trial court did not rely on adverse possession, but the affirmative defenses of waiver, equitable estoppel, laches, and acquiescence are not appropriate arrows in an offensive quiver. While appellants have not located an Arkansas case on point, a number of courts have held that such defenses may not be used offensively. See, e.g., *Baker v. Baker*, 920 So.2d 689, 692 (Fla. Ct. App. 2006) (declining to allow laches to be used as a "sword"); *In re Marriage of Parker*, 14 Cal.App.5th 681, 688, 223 Cal.Rptr.3d 344, 348349 (2017) ("Laches may be used only as a shield, not as a sword"); *Two South Corp. v. City of Wilmington*, Civ. No. 9907 Chancery Del. July 1, 1989), 1989 WL 76291 at *7 (permitting a party to assert laches "offensively in this novel

fashion would stand the doctrine on its head"). There are sound reasons for treating laches, waiver, equitable estoppel and the like as affirmative defenses, as Arkansas does. E.g., *Frazier v. Office of Child Support Enforcement*, 2021 Ark. App 65 at *2, 618 S.W.3d 415 419 (2021). The party relying on these doctrines bears the burden of proof on them, and in fairness should be required to place these issues in play by pleading them. This Court should ignore the affirmative defenses asserted by appellee as alternative bases for the decision below.

f. In any event, once appellants learned that a competing group claimed control over the family cemetery, appellants contested such control at every turn.

This case was about competing claims to control over a family cemetery by separate family groups. It does not appear that either group was well versed in the law. One group failed to recognize that it could not transfer an interest in real property from individuals or an unincorporated Arkansas entity to a separate Arkansas corporation merely by filing articles of incorporation. Meanwhile, the other group, operating simultaneously, was slow to realize that the control they thought they had as family members had purportedly been taken over by a corporation.

After all, it is undisputed that Clyde had a working key to the property from 2009 to 2021. (RT 41). Moreover, appellants offered evidence that Clyde was elected president of the cemetery at a family meeting in September 2021. (RT 87,

103-104). Thus, painting over the contact information for persons he believed to be unauthorized to act for the family, and removing a lock that prevented his access, were not the actions of one who "acquiesced" in another's claim to control over the property.

And while Clyde subsequently took the ill-advised steps of recording a quitclaim deed granting title to himself and Violentee, and then identifying himself as president of the Association on a state filing, these steps were also direct challenges to the corporation's claim of control over the property.

g. There is no merit to appellee's contention on appeal that it actually does own the property, given its admissions below.

Finally, a word must be said about appellee's assertion on appeal that it does own the property. There is no credibility determination to be made here. April Harris testified unequivocally that there was no deed in the name of Hatchett-Bullock Cemetery Association, Inc. in the following exchange:

> BY MR. HARRIS:
> Q. Who filed this warranty deed you claim gives the association the authority?
> A. Doc Hatchett, Jr.
> Q. I'm sorry.
> A. Doc Hatchett, Jr.
> Q. So this was filed prior to 2009?
> A. Yes.
> Q. So there is no deed—to your knowledge, there's no deed that has the name of the Hatchett-Bullock Cemetery Association, Inc.?
> A. Correct.

(RT 57- 58). While she at one point claimed there was a deed to the Association from cemetery patriarch "Doc" Hatchett, she confessed that this man had died before the Association was incorporated in 2009. (RT 54-55).

CONCLUSION

For all the reasons stated above, and for the reasons outlined in appellants' opening brief, the order of the circuit court granting a final injunction should be reversed, insofar as it enjoins appellants from access to the family cemetery property.

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CERTIFICATE OF SERVICE

I certify that on August 2, 2024, I filed this brief using the Court's eFlex filing system, which will serve a copy on all counsel of record, and that a copy will be emailed on August 2, 2024, to the Honorable Morgan E. Welch, Jr.

/s/ Troy A. Price

Troy A. Price

CERTIFICATE OF COMPLIANCE

I certify that this brief complies with Administrative Order No. 19, that it complies with Administrative Order No. 21, Section 9, and that it conforms to the word-count limitations in Rule 4-2(d) of this court's rules. The sections specified in Rule 4-2(d) as counting against the word-count limitation altogether contain 1,741 words.

/s/ Troy A. Price

Troy A. Price